

ELIZABETH II



1980 CHAPTER iii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Forth Ports Authority (No. 2). [31st January 1980]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Forth Ports Authority (No. 2) Short title. Order Confirmation Act 1980.

SCHEDULE

FORTH PORTS AUTHORITY (No. 2)

Provisional Order to remove a disqualification as to the appointment by the Secretary of State of paid officers or servants of the Forth Ports Authority as members of that Authority.

WHEREAS—

(1) The Forth Ports Authority are by virtue of the Forth Ports Authority Orders 1966 to 1973 the authority responsible for the improvement, maintenance and management of the harbours of Burntisland, Grangemouth, Granton, Kirkcaldy, Leith, Methil and Newhaven, and the river and firth of Forth:

(2) By article 3 of the Forth Ports Authority (Constitution) Revision Order 1973 the Authority consist of nine members, of whom six are appointed by the Secretary of State, and of the remaining three one is the general manager of the Authority ex officio and two are full-time officers of the Authority appointed by the Authority:

1967 c. xli.

(3) Under paragraph 10 (1) (a) of Schedule 1 to the Forth Harbour Reorganisation Scheme 1966 the Secretary of State, in making his appointments, cannot appoint a person who is a paid officer or servant of the Authority:

(4) This restriction puts employees of the Authority at a disadvantage in relation to employees of the Authority's subsidiary companies, is not in the best interests of industrial relations, and should be removed:

1936 c. 52.

(5) The purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers conferred by the said Act of 1936, the Secretary of State hereby orders as follows:—

Short and collective titles.

1. This Order may be cited as the Forth Ports Authority (No. 2) Order 1980, and shall be included among the orders which may be cited together as the Forth Ports Authority Orders 1966 to 1980.

Qualifications for appointment to Authority.

2. Head (a) of paragraph 10 (1) of Schedule 1 to the Forth Harbour Reorganisation Scheme 1966 is hereby repealed.

Costs of Order.

3. The costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise in relation thereto shall be paid by the Forth Ports Authority and may in whole or in part be defrayed out of revenue.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED

FOR BERNARD M. THIMONT

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

20p net

ISBN 0 10 510380 2